

25VECV00396 25VECV00396

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV00396 Hearing Date: September 11, 2026 Dept: NWI

25VECV00396 PETERSON v. FCA US, LLC.,
et al.

September 11, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion for Reconsideration

I.

Background

This is a lemon law action arising out of Plaintiff Kenneth Peterson's ("Plaintiff") purchase and/or lease of 2017 Certified Pre-Owned Ram 1500, VIN: 1C6RR7JM6HS587321 (the "Subject Vehicle"), manufactured and/or distributed by Defendant FCA US, LLC ("FCA") and repaired by Defendant Dependable Dodge Inc. d/b/a Dependable Chrysler Dodge Jeep Ram ("CDJR"). On January 22, 2025, Plaintiff filed a Complaint against FCA, CDJR, and DOES 1 through 10 (collectively, "Defendants"), asserting causes of action for: (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2) Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability; (5) Fraudulent Inducement – Concealment; and (6) Negligent Repair.

On May 13, 2025, Plaintiff filed a First Amended Complaint ("FAC") against Defendants. On June 16, 2025, FCA filed a Demurrer with Motion to Strike. The matter came for hearing on July 29, 2025;

the demurrer was sustained with leave to amend as to the fifth cause of action only and the motion to strike was granted with leave to amend.

On September 16, 2025, Plaintiff filed the operative Second Amended Complaint ("SAC") against Defendants.

On September 18, 2025, FCA filed its Answer to the SAC. On October 13, 2025, CDJR filed its Answer to the SAC.

On August 3, 2026, FCA filed the instant Motion for Reconsideration of this Court's July 24, 2026 Order denying FCA's ex-parte application to continue trial to hear its timely filed Motion for Summary Judgment. Any opposition would have been due on August 28, 2026. To date, no opposition has been filed.

II. Discussion

Code of Civil Procedure Section 1008, subdivision (a) provides that any party affected by an order of the Court "may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown."

As it relates to new or different facts, circumstances, or law under Code of Civil Procedure Section 1008, subdivision (a), "the moving party must provide a satisfactory explanation for the failure to produce that evidence at an earlier time." (Shiffer v. CBS Corp. (2015) 240 Cal.App.4th 246, 255.) Furthermore, "facts of which the party seeking reconsideration was aware at the time of the original ruling are not "new or different." (In re Marriage of Herr (2009) 174 Cal.App.4th 1463, 1468.) This is because " '[t]he burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it' at the original hearing." (Cradduck v. Hilton Domestic Operating Co., Inc. (2025) 112 Cal.App.5th 284, 304.)

FCA moves for an order reconsidering the Court's Order Denying FCA's Ex Parte Application to Continue Date Set for Trial, or in the Alternative, to Advance the Hearing Date for FCA's Motion for Summary Judgment (the "Order") dated July 24, 2026. The motion is made on the grounds that the Order was in error because FCA's Motion for Summary Judgment ("MSJ") was timely filed and served. Specifically, FCA contends that the Court calculated the timeliness of its MSJ based upon departmental hearing procedures. (Mot. at 2:22-24.) However, there is no indication in the Order that the calculation regarding the timeliness of FCA's MSJ was based upon departmental hearing procedures as opposed to the Code of Civil Procedure Section 437c, subdivision (a)(2)-(3). In fact, the Order expressly states: "Defendant FCA US, LLC ("FCA") failed to timely file and serve its Motion for Summary Judgment. CCP §437c(a)(2) and (3)." (Min. Order, 7/24/26.) This suggests that the Court's calculation was based on the statute not any departmental hearing procedures. Nevertheless, the Court notes that the MSJ filing deadline was inadvertently miscalculated.

First, the trial is set for October 26, 2026, therefore, any MSJ must have been heard no later than Monday, September 28, 2026 because that is the hearing date 30 calendar days from the set trial date. Subsequently, any MSJ must have been filed at least 81 calendar days from September 28, 2026, which would have been Thursday, July 9, 2026. The MSJ was filed on July 6, 2026. As such, FCA has demonstrated that the Order was based on an mistaken calculation not known prior to the hearing on the Ex Parte Application. Likewise, the Order was also based upon the Court finding that FCA failed to show immediate or irreparable harm absent the emergency relief requested, which was presumably linked to the miscalculation of the MSJ filing deadline.

III.

Conclusion

Accordingly, Defendant FCA US, LLC's Motion for Reconsideration is GRANTED. Trial in this matter is advanced and continued to January 19, 2027² and the Final Status Conference is advanced and continued to 1/8/2027.

Defendant FCA US, LLC's to give notice.